

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

COMPLAINANTS’ RESPONSE TO RESPONDENTS’ “SUR-REPLY”

Complainants, by their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this Response following receipt of Respondents’ self-styled “Motion to Strike Complainants’ Reply to a Reply”; in reality, a “sur-reply” to Complainants’ Motion to Compel now pending before the Presiding Officer.

RESPONDENTS’ ABUSIVE MOTION PRACTICE

From the inception of this litigation Respondents by their counsel, Eric Jeffrey, Esq. has inundated Complainants with frivolous motions calculated solely to multiply litigation herein in order to effectively ‘tie up’ your affirmant with submitting responses to seemingly endless *ad*

nauseum submissions containing little (if any) substantive argument; and consisting largely of redundant reiteration of failed arguments previously made, pompous pontification, and improper references to separately filed motions, in a never ending cycle of insults, condescending lecturing, and other opprobrium well deserving of the *sua sponte* imposition of sanctions upon Mr. Jeffrey and his law firm.

In the alternative, should the Presiding Officer not see fit to *sua sponte* impose sanctions upon Mr. Jeffrey, it is in the alternative respectfully requested that pursuant to the ‘extraordinary circumstances’ created herein by Mr. Jeffrey and his minions, that Respondents be precluded from filing *any* further motions or subsequent responses to motions presently docketed with the Commission, absent obtaining prior leave and permission to do so from the Presiding Officer.

ARGUMENT

Respondents’ Improper Reference to Other Motions

Peculiar to their misguided and unethical methods of practice, Respondents continue to file submissions with the Presiding Officer on *one* motion, which makes reference therein to *other* motions. By example, and within their instant “sur-reply” to Complainants’ pending Motion to Compel, improper reference is made therein to Respondents’ separately filed Motion for Judgment on the Pleadings in an obvious attempt to improperly ‘bootstrap’ the frivolous “argument” contained therein within Respondents’ instant “sur-reply”. To the extent that Complainants will properly respond thereto within their Response to said motion to be filed under separate cover, no argument addressing same will be included herein.

Complainants’ Reply Was Properly Made

Contrary to the blatantly misleading and patently false representations of Mr. Jeffrey, and as set forth within Complainants’ Reply to their pending Motion to Compel, *no* leave of the

Presiding Officer is required for non-dispositive motions resulting in ‘extraordinary circumstances’. As argument in support thereof was abundantly set forth in Complainants’ subject Reply, your affirmant will not burden the Presiding Officer, as has Mr. Jeffrey, with a redundant regurgitation of arguments previously made.

Respondents’ “Sur-Reply” Should Be Rejected

As the Presiding Officer is well aware (and indeed as is Mr. Jeffrey), there exists *no* procedural vehicle within the Commission’s Rules of Practice and Procedure (CRPP) which allow for or permit the filing of a ‘sur-reply’; let alone absent prior leave of the Presiding Officer to interpose same. Accordingly, Respondents’ instant “sur-reply” should be summarily rejected and accorded *no consideration whatsoever* as part of deciding Complainants’ pending Motion to Compel.

Respondents’ Extraneous “Argument”

In the first instance, Complainants will not burden the Presiding Officer, as has Mr. Jeffrey, with continued, repetitious, and redundant discussion of the undeniable procedural defectiveness of Respondents’ initial Response to Complainants’ pending Motion to Compel; nor with further *ad nauseum* regurgitation of communications with the Presiding Officer’s Secretary, Ms. Hutchins which are otherwise well documented.

Neither will Complainants further burden the Presiding Officer with gratuitous repetition of arguments previously made, as has Mr. Jeffrey, via his lame reiteration of Respondents’ wholly inadequate ‘efforts’ to attempt to respond to Complainants’ discovery demands herein, or to comply with the Presiding Officer’s Orders of April 27, 2016, both of which served as the basis for Complainants’ pending Motion to Compel, other than to note Mr. Jeffrey’s completely insufficient representations as to “...hav[ing] made as much of a search as they reasonably can”;

nor Mr. Jeffrey's completely non-responsive and 'open-ended' representations that documents responsive to Complainants' outstanding demands *will* be produced "...when, and if, identified". Needless to say, such nebulous, vague, and ambiguous representations are not only completely insufficient, but constitute flagrant disregard of the Presiding Officer's Orders which further warrant the *sua sponte* imposing of sanctions against Mr. Jeffrey personally and his law firm as the Presiding Officer may see fit.

As to Mr. Jeffrey's irrelevant ruminations as to "...what, if any, benefit Complainants expect from such documents...", such pointless hyperbole neither merits nor requires any response, other than to state that to the extent Respondents have been Ordered by the Presiding Officer to provide such documents, Respondents are under an undeniable duty to do so, notwithstanding Mr. Jeffrey's sophomoric bemusing, which merits no further response.

Complainants' Outstanding Discovery

Complainants will not, as has Mr. Jeffrey, burden the Presiding Officer with a needless repetition of the well-founded and supported arguments contained in Complainants' pending Motion to Compel as same have as of the time of this writing been abundantly addressed and set forth within same, other than to note that said Orders directed Respondents to provide, *inter alia*, "...any other documents relating to the shipment of the vehicles."

Accordingly, and despite Mr. Jeffrey's attempts to adorn himself with the mantle of a Presiding Officer, Complainants are under *no* duty or burden to "explain why such documents are necessary or relevant...".

Despite the attempted "pathos" of Respondents' plaintive complaints of being "...a small firm with limited resources and no network source of emails...", the foregoing blatant attempt to curry sympathy from the Presiding Officer is not only pathetic to the point of constituting

entertainment value, but more importantly is of no merit or moment with respect to Respondents' undisputed duty to timely comply with the Presiding Officer's Orders, which having not been achieved, compelled the interposing of Complainants' instant Motion to Compel.

CONCLUSION

As stated above, and despite its euphemistic entitling, Respondents have undisputedly attempted to serve a "sur-reply" herein in direct contravention of the CRPP.

Further, and as aforestated, Respondents' submissions are now exposed as tactical contrivances calculated to vex, harass, and annoy Complainants and their counsel, and to improperly take second, third, and fourth "bites at the apple" with respect to all motions presently pending; ostensibly out of sheer desperation to at all costs frustrate, obstruct, and prevent lawful discovery in this matter as Ordered by the Presiding Officer. Accordingly, and with respect to Complainants' pending Motion to Compel, the Presiding Officer is respectfully urged to now issue a directive that no further submissions be filed by *either* party with respect to this motion, pending a decision on same by the Presiding Officer.

In closing, and with regard to Mr. Jeffrey's odd reference to your affirmant's of-counsel, Mr. Katz, inclusive of a footnote regarding same, and as Mr. Jeffrey is well aware, *at no time* has said of-counsel authored, executed, or signed *any* correspondence, pleadings, motions, or *any communications whatsoever* in this matter, despite Mr. Jeffery's rank speculation, utter conjecture, and unsupported surmise to the contrary. It is hoped that the foregoing will resolve Mr. Jeffrey's disingenuously professed confusion "...as to who is communicating via [your affirmant's email] address in a particular instance", which is not only palpably irrelevant, but is further, quite frankly, none of Mr. Jeffery's business despite his grossly irrelevant inquiry to the contrary.

Complainants apologize for the undue burden foisted upon the Presiding Officer through the repetitive, improper, and pretextual submissions of Mr. Jeffrey and his cohorts with respect to Complainants' pending Motion to Compel.

Dated: June 23, 2016
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in dark ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

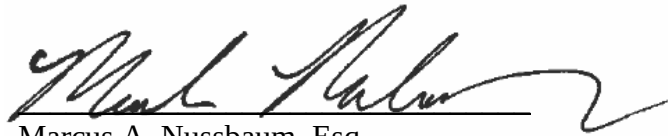
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' RESPONSE TO RESPONDENTS' SUR-REPLY** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and by email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

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Dated: June 23, 2016 in Brooklyn, New York.